



File No.: EXP202102521

RESOLUTION OF THE APPEAL FOR RECONSIDERATION

Examined the appeal for reconsideration filed by Mr. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection, dated August 21, 2023, and based on the following:

FACTS

FIRST: On August 21, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202102521, proceeding to archive the prior investigation proceedings. This resolution was notified to the appellant on August 22, 2023, as evidenced by the acknowledgment of receipt in the file.

SECOND: The appellant submitted on August 24, 2023, to this Spanish Agency for Data Protection, an appeal for reconsideration, fundamentally based on the following: Errors have occurred in the archived resolution regarding the role of the entity subject to the complaint, as it is indicated that it is the data processor, which is not the case, since:

"This conclusion, which serves as the basis for the resolution subject to this appeal, evidences that an error has been committed by the AEPD in identifying the role played by the reported company, without there being sufficient legal justification in it to support such a conclusion. In this regard, according to what this party pointed out and credibly evidenced in its complaint and in the appeal it filed in September 2022, which was, by the way, upheld by the AEPD, the actions carried out by ARAMARK far exceed what was entrusted to it by the Andalusian Agency for Education, which is specified in the terms that governed the contracting of the catering service in which the conditions of the data processing assignment are outlined.

Not in vain, the very Second Fact of the resolution subject to this appeal states that the reported company acknowledges that it "acts as a data processor for certain purposes, including the management of absences of the interested parties concerning CEIP ***CEIP.1 of Seville."

However, that purpose of managing student absences from the educational center is not part of the object of the contract tendered by the Andalusian Agency for Education since it is exclusively limited to the provision of the catering service; that is, to provide food to the students of CEIP ***CEIP.1.

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Consequently, it is credibly evidenced, and recognized by the reported company, that ARAMARK is carrying out data processing for purposes that are different and exceed what is permitted in the data processing assignment contract.

Furthermore, it has been credibly evidenced that the terms governing the contracting, which are included in the present file, do not contemplate the possibility that ARAMARK processes special categories of data.

Despite this, it has been evidenced throughout the processing of this file that this company is indeed carrying out data processing of health information of minors and that, therefore, it lacks legitimacy. That is to say, in order to be a beneficiary of a public catering service whose conditions have been set by the Administration in the terms, ARAMARK imposes, unilaterally and outside of what has been expressly authorized by the educational Administration, submission to data processing of which it positions itself as responsible and which aim to achieve purposes quite different from those authorized in the data processing assignment contract.

Having pointed out the above, it is appropriate to remind the AEPD of what is provided in Article 33.2 in fine, which is transcribed below for clarification purposes. "The person who, appearing as a processor, uses the data for their own purposes will also be considered a data controller."

The provision leaves no room for doubt, in such a way that the organic legislator has clarified that when a data processor uses the data for its own purposes, it will be considered a data controller. Thus, ARAMARK, with respect to the processing indicated by this party, acts as a data controller and not as a processor under Article 33.2 in fine of the LOPDGDD.

Moreover, in its capacity as a data controller, it does not have the status of an entity of the Andalusian public sector but rather of a subject governed by private law.

Therefore, the resolution to refer actions to the Council of Transparency and Data Protection of Andalusia is entirely contrary to law since it cannot be subsumed under the legal arguments contained in the resolution subject to this appeal.

Secondly, the appellant argues that one of the principles governing administrative action is that of its own acts, as extensively recognized by jurisprudence.

It alleges the following:

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Well, the truth is that the facts and grounds on which this appeal is based are, in essence, the same facts and grounds that were contained in the appeal filed by this party in September 2022 against the prior resolution of the AEPD to archive the proceedings. Such arguments were upheld at that time, consequently warranting the reopening of the file and the continuation of its processing. Given that the same facts and legal grounds are present now, it follows that the dismissal of this appeal would only result in a flagrant violation, by the AEPD, of the principle of its own acts by which it is governed.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, it should be noted that the main allegation on which the appeal is based was already pointed out by the now appellant in a previous appeal, which is that ARAMARK does not act as a data processor but as a data controller in relation to the provision of the cafeteria service at IES ***IES.1 in Seville.

During the preliminary investigative proceedings conducted following the acceptance of the first appeal for reconsideration filed by the appellant, the following was established:

“1. It provides the Register of activities of the processing of personal data of attendance and absences from the cafeteria service dated 21/2/23. Since the respondent is part of an international group, it submits the original documentation extracted from its files in English.

The aforementioned register states that:

Aramark uses its website ***URL.1 to market its food services and products to consumers. Aramark operates on a website with three Aramark entities (namely, the respondent and two others). Certain personal data is collected from all visitors to the website and processed by or on behalf of Aramark in the form of cookies.

Aramark uses its website as a direct communication channel with parents regarding menus, events, and monthly invoices, therefore, attendance and absence records. This is the main function of the site, which is why Aramark is considered the controller of the main site.

Additionally, the website has another function that Aramark only perceives as a processor (on behalf of the individual school, respectively the contracting authority (public or private) entity managing the

school): indication of allergies and intolerances (shown in a separate map: Aramark as processor). Aramark acts in a dual role as both controller and processor. However, alongside this, in 2022 around 1,272 schools (or the authority behind them), as controllers, collect data on food intolerances or disorders based on tender documents. This leads to a necessary (but artificial) separation of data flows and, therefore, to different individual data protection strategies.

The purpose of the processing is along with its legal basis:

- Increase consumer awareness of Aramark's products and services; Advertising; Art. 6.1).a GDPR (consent)
- Increase consumer awareness of Aramark's products and services; Advertising; Art. 6.1).f GDPR (legitimate interests)
- Attendance and absence registration for proper billing and accounting; Art. 6.1).b GDPR (contract)

The processed data of consumers are:

- Master data: Contact details, user comments, school, username, student identification, password, NIF, educational information, address, surname, email address, phone number, name
- Payment data: Payment card information, payment method, bank account number.

2. As a result of the execution of the cafeteria service contract and considering the role of the contractor of the contract as a data processor of Aramark, this party sent the contracting authority, responsible for the contract, Provincial Management of Seville, Andalusian Public Agency for Education of the Junta de Andalucía, the following communications (Annex 2):

- Communication of October 21, 2021: informing of the transfer of a complaint by the AEPD dated 30/9/2021.
- Communication of February 24, 2022: informing of the AEPD's requirement, the response provided, and proof of submission.
- Communication of April 11, 2022: informing as a data processor of the "Privacy Policy for schools managed by the Junta de Andalucía," of the awarded cafeteria service contract, specifically regarding the withdrawal of students from participation in meals and informing the data processor about possible allergies and intolerances of a consumer of the cafeteria services.

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3. They have not specified the appointment of a Data Protection Officer for any of the treatments related to the cafeteria service, such as adapted diets for minors or communication of absences to the cafeteria. According to a report prepared by this entity, it was concluded that in the case of Aramark, the parameters required by Articles 37 and 39 of the European General Data Protection Regulation for the presence of a delegate in the company were not met. Likewise, following the evaluation established in Article 34 of the LOPD, it was concluded that the presence of a data protection delegate in the company was unnecessary. Aramark has an internal committee for personal data protection that is responsible for managing tasks in this area, composed of the Financial Director, the Internal Audit department, the IT Director, and the Legal department to lead the committee. The last time this committee conducted an evaluation regarding the need to incorporate a Data Protection Officer was in June 2022, during which the necessity of implementing the aforementioned figure in Aramark was reexamined, and following the evaluation indicated in Article 34 of the LOPD and DD, it was concluded that the presence of a Data Protection Officer in the company was unnecessary. The original report is dated 2019 and is periodically reviewed based on the evolution of the company's activities and treatments.

1.1. Regarding registration as a user on the website

***URL.1

"(...)

to notify absences in the use of the cafeteria service, one must

register as a user on the website

***URL.1

(...)"

In relation to the claimant's assertion, this party confirms it as true since, in accordance with the provisions of the Technical Specifications to which the contract binding this party with the Ministry of Education and Sports is subject, it is the obligation of the contractor to provide users of the service with a channel to communicate student absences in the cafeteria with a minimum notice of 3 days so that such meals can be deducted from the monthly invoice. In the event that parents do not notify the absences of their children, the invoice would include the totality of the monthly meals. Below, we reproduce the text from the Specifications where this obligation is contemplated, which Aramark has scrupulously complied with. It is verified that in the PPT File No. ***EXPEDIENTE.1, pg. 32/51, aptdo 10, the following is stated regarding the notification of absences and cancellation of the service due to medical consultation attendance:

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In this regard, as indicated by the Ministry, it is the contracting company that must provide a channel or platform to manage such absences, which, in the case of Aramark, is managed through the website "el gusto de crecer" where parents must register by providing only an email address and accepting the legal conditions that govern it. On the aforementioned page, it is indicated that for the cancellation of the service due to medical consultation attendance, it can be justified with:

- Attendance report for consultation (which will serve as justification for several days of absence, provided that the prescribed days of convalescence are indicated therein.)
- Justification of access to demand for assistance.

In no case is a medical certificate requested.

1.2. Regarding the health data of minors

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"(...) as well as providing health data of minors, in the case where a situation of illness is alleged, and even to communicate intolerances. (...)"

It is radically false that the website "El gusto de crecer" requests health data of minors (such as an illness) or data on intolerances. As previously stated, the legal guardian must provide an email address and, subsequently, when they wish to access their personal section, they must enter their ID number, and the system will display the information of the beneficiary of the benefit that has been provided by the Data Controller. Once on that page, the guardian can notify the absence from the dining service without providing any further data.

The guardian of the service beneficiary must check a predetermined box and choose between the option: Present or Absent. No justification is required to click on the Present or Absent box. Therefore, no particularly sensitive data related to health is requested or collected.

Attached as Document 2 are explanatory screenshots of the communication process, detailing the information that parents or guardians must provide on the website. This document lists step by step the information that must be provided for the child to be considered "absent" from the meal with less than three days' notice. In this case, users will be able to notify their absence from the dining service at no economic cost to the user.

We do not know the reason why the claimant makes the aforementioned assertion, emphasizing this part that the procedure for notifying allergies and intolerances of the service beneficiaries is different

and has nothing to do with the website “El gusto de crecer.” Aramark wants to emphasize that on the mentioned website, such health data is not processed and that no justification is requested from the guardians regarding the reason for the user's absence from the dining service.

These assertions have been verified in the PPT File No. ***EXPEDIENTE.1, pg. 32/51, section 10.2. Notice of absences, reproduced previously through a screenshot and in Document 2.

The website “El gusto de crecer” was created by Aramark years ago and is used for various purposes such as providing information on nutrition, education, health, and well-being directed at families, children, and schools, whose main objective is to convey transparency and security regarding the development of the dining service, as well as providing information and recommendations so that they can follow a healthy diet both inside and outside the school dining service, and, upon registration:

Monthly school menu details for download or online consultation, Announcements about the activities carried out in the school dining service (educational activities, informative notes, service incidents if any...), Notification of absence or presence at the school dining service (Details of the functions).

In some of these purposes, Aramark acts as the Data Controller, and this is reflected in the privacy policy and the general terms of use.

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Given that liability does not arise from the nature of the data controller, but rather from its specific activities in a given context, Aramark acts, for certain specific purposes, as the Data Controller of the website.

In any case, this position of Data Controller should not be confused with the position of Data Processor that Aramark holds in relation to communications for the purpose of cafeteria assistance.

Regarding the data related to the cafeteria service, since it is obtained through the Data Controller (Junta Andalucía), Aramark does not have the authority to manage the registrations and cancellations of the service; rather, it will be the Data Controller who carries out such management.

1.5. Regarding data of minors

“(...) It points out that excessive data is requested from minors, a registration not provided for in the public contract entered into is required, and from this, the aforementioned website anticipates the possibility of using data for purposes other than mere management of the absence system, but rather for the purposes inherent to the user status on that website. The complainant states that the company Aramark is carrying out processing of categories of data that exceed what is provided for in the specifications governing the contract and is allocating that data to purposes other than those contemplated therein, in such a way that it is acting as Data Controller and not as Data Processor with respect to the Andalusian Agency for Education. (...)”

This part reiterates that the website does not request personal data from any user of it nor any registered user other than the email address.

The bidding specifications expressly provide that the awardee must provide a channel, platform, website, app, or similar for the beneficiaries of the service to manage cafeteria absences without specifying any characteristics of it or that it must be exclusive for that task. The offered channel meets the basic characteristics of any existing website, app, or platform in the market without exceeding its processing or going beyond the purpose for which it must process the obtained data. Likewise, the data of the interested parties related to the notification of cafeteria attendance is processed solely and exclusively to manage nothing more than the tasks associated with the reference contract.

Aramark provides the public service in school cafeterias under the responsibility of the educational authority. According to File No. ***EXPEDIENTE.1 (document submitted to the file as Associated Object PCAP), Administrative Clauses Specifications of the Andalusian Public Agency for Education for the Contracting of the Public School Cafeteria Service and Child Nutrition Reinforcement Program in Public Educational Centers Dependent on the Ministry of Education and Sports through an open procedure, section 12.1. Conditions of execution, end of pages 33 to 37, Aramark as the awarded

entity, as Data Processor, must process the personal data of which

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The contracting entity is responsible in the manner specified in Annex XXII-A of said specifications. In this regard, Aramark has processed Personal Data in accordance with the instructions mentioned in the Specifications and other applicable contractual documents for the execution of the contract. The following details the data that will be the subject of the assignment in the bidding: Name and Surname, ID number, address, and bank account number of the beneficiary students and their legal guardians (see ANNEX XXII-A, p. 161 of the PCAP document). Aramark has processed the Personal Data in accordance with the security criteria and the content provided in Article 32 of the GDPR, observing and adopting the necessary or appropriate technical and organizational security measures to ensure the confidentiality, integrity, availability, and resilience of the processing systems and services. Aramark has maintained the utmost confidentiality regarding the Personal Data to which it has access for the execution of the contract, as well as regarding any data resulting from its processing, regardless of the medium in which they were obtained.

On the other hand, the website ***URL.1 is a website managed by Aramark. Consequently, Aramark acts as the Data Controller in the privacy policy of the website.

We consider the website provided by Aramark simply as a tool through which data is collected on behalf of and for the CEIP ***CEIP.1 of Seville by the TECHNICAL SPECIFICATIONS DOCUMENT OF THE ANDALUSIAN PUBLIC AGENCY.

In this sense, Aramark acts as the Data Controller for certain specific purposes and as the Data Processor for other purposes, including the management of absences of the interested parties related to CEIP ***CEIP.1 of Seville.

Therefore, in its capacity as Data Processor, Aramark processes the personal data of the interested parties, such as: Name and Surname, ID number, address, and bank account number of the beneficiary students and their legal guardians. Likewise, in its capacity as Data Controller, it processes personal data for other services provided through the website.

After reviewing the documentation in the file, it was confirmed that the claimed party is the awardee of the cafeteria service contract offered by the Junta de Andalucía, with this Administration being responsible for the processing of data of student users of the cafeteria service and the claimed entity acting as the Data Processor. To this end, it follows the contractor's instructions according to the PPT and PCAP in its role as Data Processor for both the 2019 and 2020 files (related to the claim).

For the communication of the absences of minors to the cafeteria, ARAMARK provides the legal guardians of the minors with access via username and password, where the information of the Privacy Policy is also included. If the absence is due to...

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medical consultation a justification for attendance at a medical consultation is requested, in no case, a medical certificate with health data. The Andalusian Administration is responsible for the processing of this data.

On the other hand, the website ***URL.1 provides a platform and an app for parents or legal guardians to voluntarily register and communicate the absences of students, with a link to the privacy policy, in which the claimed party appears as responsible. This website contains information about the processing of data that occurs when accessing it and registering. Considering the data they process, it is not necessary for them to appoint a Data Protection Officer.

In accordance with the provisions established in the Technical Specifications to which the contract binding this party with the Ministry of Education and Sports is subject, it is the obligation of the contractor to provide users of the service with a channel to communicate the absences of the student in the cafeteria with a minimum notice of 3 days so that such meals can be deducted from the monthly invoice. In the event that parents do not notify the absences of their children, the invoice would include the totality of the monthly meals. A medical certificate is not required for such justification.

The Spanish Agency for Data Protection has not acted against its own acts, but rather, upon admitting the initial appeal for reconsideration presented by the now appellant, new investigative actions were initiated to determine the role of the claimed entity in the processing of data from the cafeteria service contracted with the Ministry of Education and Sports of the Junta de Andalucía.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Mr. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on August 21, 2023, in file EXP202102521.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

In accordance with the provisions established in Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions established in Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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